

FILED

APR 20, 2024

CRAIG A. STREET
MISSOURI COURT OF APPEALS
SOUTHERN DISTRICT

SD38180

Matthew Goodman

8681 SE 71ST ST

Baxter Springs KS. 66713

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417-388-0890

Date: 2024-04-09

Craig A. Street, Clerk Missouri Court of Appeals 300 S. Hammons Pkwy Ste 300
Springfield MO.

Dear Mr. Street,

I write to address specific procedural and legal oversights that have significantly impacted the outcome of the dependency proceedings involving my son, Kody Goodman. This motion seeks reconsideration of the judgment on grounds that it is multifaceted and materially affects my right to fair representation and due process. Moreover, this motion challenges the validity of the judgment about the termination of my parental rights over Kody Goodman, under appeal number SD38180 and 22AO-JU00288.

As I continue to assert my parental rights, I question the judicial process leading to the termination. This motion presents a critical opportunity for this Court to reexamine and potentially reshape the principles governing the fairness and equality of parental rights, the application of federal rights under 42 U.S.C. § 1983 in state proceedings, and to reinforce the constitutional safeguards of due process. In grappling with these pivotal issues, this Court has the unique capacity to render a decision that may serve as a benchmark for the protection of paternal rights and equitable jurisprudence nationwide

IN THE MISSOURI COURT OF APPEALS SOUTHERN DISTRICT

Appeal No. SD38180

IN THE INTEREST OF K.C.G. M.P.G. Appellant, vs. B.L.M. and C.T.A.M.,
JASPER

COUNTY JUVENILE OFFICE, Respondent

MOTION FOR RECONSIDERATION, REQUEST FOR EN BANC REVIEW
TRANSFER, AND PETITION FOR INJUNCTIVE RELIEF FOR ONGOING
VIOLATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983 AND THE EX
PARTE YOUNG DOCTRINE

On Appeal from the Circuit Court of Jasper County For the 29th District of
Missouri

MATTHEW PRESTON GOODMAN Telephone: 417 –388-0890
Malcolmgoodmen@gmail.com Pro Se Litigant.,

TABLE OF AUTHORITIES

- **42 U.S.C. § 1983:** This federal statute provides a means for citizens to seek relief against the violation of their constitutional rights by persons acting under state law.².
- **Ex parte Young, 209 U.S. 123 (1908):** A U.S. Supreme Court case that allows federal courts to order state officials to comply with federal law.
- **Claudio v. Scully, 982 F.2d 798 (2d Cir. 1992)**
- **PEOPLE v. STULTZ, S263034 (Cal. Aug. 31,2010)**
- **JENNINGS v. WOODFORD,290 F.3d 1006 (9th Cir. 2002)**
- **Lucas v. Jones, (Supreme Court of Arkansas, 2012):** A case relating to the standards for appointing counsel for indigent individuals.
- **United States ex rel. McDonald v. Hodge, (UNITED STATES DISTRICT COURT NORTHERN DISTRICT OF ILLINOIS EASTERN DIVISION, 2012):** A case that may address issues concerning the withdrawal of appointed counsel.
- **Alameda Cnty. Soc. Servs. Agency v. M.B. (In re A.R.):** Regarding effective assistance of counsel in dependency proceedings.
- **S.B. v. DEPT. OF CHILDREN AND FAM and In re O.S.:** Issues surrounding ineffective assistance and the right to legal representation in dependency proceedings.
- **In re EMILYE A and L.W. v. DEPT. OF CHILDREN AND FAMILIES:** Standards for evaluating legal representation in cases involving parental rights.
- **McKASKLE v. WIGGINS, (465 U.S. 168, U.S. Supreme Court, 1984):** A case discussing the right to direct one's own defense.
- **Romero v. State, (Court of Appeals of Texas, Fifth District, Dallas, 2024):** A case dealing with self-representation at the appellate level.
- **Cone v. Bell, (556 U.S. 449, U.S. Supreme Court, 2009):** A case concerned with ineffective assistance of counsel and withholding evidence.

- **Lassiter v. Department of Social Services:** A U.S. Supreme Court case about the right to appointed counsel in civil cases that involve the termination of parental rights.
- **In re P.D., (144 S.W.3d 907, Missouri Court of Appeals, Eastern District.,2004):** Discusses the impact of denied motions for continuance on due process rights.
- **STANLEY v. ILLINOIS, (405 U.S. 645, U.S. Supreme Court, 1972):** A Supreme Court case regarding the due process rights of parents in judicial proceedings.
- **In re Stephanie M., In re Marilyn H:** Circumstances under which parental rights may be terminated.
- **Youngberg v. Romeo, 457 U.S. 307, 102 S. Ct. 2452 (1982):** A case about the rights of involuntarily committed persons, which might be applied by analogy, and imply K.G has the right to safety in current placement
- **Santosky v. Kramer:** Sets the standard of proof for termination of parental rights as "clear and convincing evidence."
- **KOHL v. LEHLBACK 160 U.S. 293 (1895):** A case reference that may pertain to due process or parental rights.
- **Green v. Mansour, Pennsylvania v. Finley:** Cases discussing the rights to seek remedy under 42 U.S.C. § 1983.
- **In re S.M.H.:** A case requiring clear and convincing evidence for the termination of parental rights as per Missouri law.
- **Strickland v. Washington:** A U.S. Supreme Court case laying out the standard for claims of ineffective assistance of counsel.
- **Luleff v. State and State ex rel. J.D.S. v. Edwards:** Cases that address the role of counsel in legal defenses and the procedural processes in parental rights adjudications.

JURISDICTIONAL STATEMENT

This appeal is properly before the Missouri Court of Appeals for the Southern District pursuant to Rule 30.01(d) of the Missouri Rules of Appellate Procedure, following a final judgment from the Circuit Court of Jasper County for the 29th District of Missouri. This Court has jurisdiction under Mo. Rev. Stat. § 512.020, as the appeal seeks review of a final judgment involving the termination of parental rights, a decision appealable as of right. Furthermore, the issuance of injunctive relief against ongoing violations of Federal Rights, including those rights protected under 42 U.S.C. § 1983, invokes this Court's Jurisdiction under the EX PARTE YOUNG DOCTRINE, which allows Federal Courts to enjoin state officials from violating Federal Law, as established by the United States Supreme Court in *Ex parte Young*, 209 U.S. 123 (1908). This motion timely follows the entry of judgment, adhering to the timeframe established by Rule 84.04 of the Missouri Rules of Appellate Procedure, ensuring that the Court may exercise its jurisdiction to provide relief as necessary.

STANDARD OF REVIEW

In the appeal concerning the interests of K.C.G., and the subsequent legal matters involving M.P.G., Appellant vs. B.L.M. and C.T.A.M., Jasper County Juvenile Office, Respondents, the standards of review that the Missouri Court of Appeals, Southern District, should employ are delineated as follows:

1. DE NOVO REVIEW:

For questions of jurisdiction and legal interpretation, which involve the thorough examination of statutory provisions, case law, and constitutional principles, a de novo standard of review is essential. When reviewing these matters, the Appellate Court exercises an independent, non-deferential judgment. This court must reassess the standard of review for legal issues presented without presumption of correctness of the lower court's ruling, ensuring that the legal foundations dictating the outcome of the case are solidly in accordance with the law and legal precedent.

2. SUBSTANTIAL EVIDENCE STANDARD:

In reviewing the factual findings made by the trial Court, the standard of review should shift to the substantial evidence test. This standard directs the appellate court to affirm the lower court's determinations if the findings are supported by substantial evidence on the record. Substantial evidence is such relevant evidence that a reasonable mind might accept as adequate to support a conclusion, even if it is possible to draw two inconsistent conclusions from the evidence. (“**Giha v. Garland, No. 15-73085 (9th Cir. 2021) :: Justia**”) The question is not whether the evidence could support a different conclusion but whether it supports the conclusion that was reached by the trial Court.

3. CLEARLY ERRONEOUS STANDARD:

When addressing the potential clear error in the trial court's findings of fact, it is warranted that such findings are left undisturbed unless the reviewing court, on the entire evidence, is left with the definite and firm conviction that a mistake has been made. This heightened degree of assurance in the trial court's factual accuracy recognizes the trial judge's role as the primary factfinder, having had the opportunity to observe witness demeanor and to weigh the evidence presented firsthand.

The employment of these distinct standards of review acknowledges the dual nature of appellate scrutiny, where legal issues are reviewed with precision and independence, and factual determinations are accorded deference unless they fall short of the evidentiary benchmark or are manifestly erroneous.

1. BACKGROUND

1. K.G was born October 13,2018
2. K.G resided with mother at 1441 Kimberling Lane Apartment E., Carthage MO.64836 at the time the dependency case was initiated.
3. Father of K.G is M.G
- 4.Father resided at 8681 SE 71ST ST BAXTER SPRINGS KS when the case began and still resides at the same address.
5. The case at hand originated from complex child in need of services (CHINS) proceedings which resulted in the controversial termination of my parental rights
- .6. Appellate hired an attorney and petitioned the Court to establish paternity and custody. And to change last name of K.G from Alton to Goodman; on or about 9-5-2019
7. A judgment of Paternity and Order of Custody from Angela Vorhees the same judge who conducted the trial in question for the termination of parental rights was issued on or about 9-4-2019 a year and a half prior to the proceedings of abuse and neglect by the mother of K.G were initiated
8. The decree granted M.G 50/50 physical and legal custody, then once K.G turned 3 years old M.G was to be granted visits with him every other two weeks for two weeks every other week.
9. On Jan 2,2021 K.G was taken to the emergency room in Carthage Mo. and had tested positive for an illegal substance.
- 10.K.G was removed from his mother's Custody.
11. At the time K.G was taken from his biological MOTHERS Custody father had visits every other weekend and every Wednesday in which K.G stayed with me in Kansas
- 12.At the time K.G was TAKEN from MOTHERS CUSTODY it was NOT fathers' weekend to have K.G in his immediate control care and custody.
- 13.Appellate could not have known of the situation living in Kansas at 8681 SE 71ST ST Baxter Springs KS 66713
- 14./Appellate became aware within days informed by his uncle who lived in Carthage MO. and attempted to intervene in the situation when K.G was sheltered at the. Childrens Haven in Joplin after a visit set up by myself and Kathleen after

multiple attempts to locate my son and finally was told about K.G, and his whereabouts".

15. I M.G was told I could not take my son from the Shelter by Jennifer Emmons, the situation being what it was I didn't argue because of the trauma already inflicted and the fact K.G was with his brother who isn't my biological son.

16. Multiple hearings were held without me being appointed counsel such as emergency shelter hearing on or about January 4,2021

17. Another hearing being an adjudication hearing on or about February 9, 2021 shown in notice received at location of hearing.

18. Again on or about 2-23-2021 All of which I had no counsel shown in notice I received at prior hearing as shown in exhibits.

19. Feb,23,2021 after not getting appointed counsel I had petitioned the court with a motion for rehearing noting that meaningful contact between my son K.G and I M.G was disrupted as proven by exhibits

20. February 23, 2021, father also filed a family access motion as shown in the notice of entry from the same date 2-23-2021

21. February 23, 2021, Father filed a MOTION TO PROCEED AS A POOR PERSON and a MOTION FOR FAMILY ACCESS also on February 23,2021 in the Circuit Court of Jasper County

22. Father M.G also filed in the

Family Court of Jasper County Missouri a MOTION TO MODIFY CUSTODY.

22. February 23, 2021, Court denied motions filed on February 23, 2021, And found that M.G had sufficient funds (Exhibit filed 2-23-2021) the MOTION TO MODIFY CUSTODY was stayed pending juvenile court jurisdiction.

23. The Circuit Court of Jasper County then appointed Ron Sparling without my knowledge on February 23, 2021, as shown in the Notice of court appointment presented in exhibits I seen this notice provided after requesting court files for the first time on June 6, 2022

24. As of today's date 19th of April 2024 the MOTION TO MODIFY CUSTODY has not been disposed

25. The court had mailed a notice to the wrong address in which the house number and street were correct not the city and State. Shown in exhibit provided a copy of

a letter mailed from Mellisa Holcomb to M.G at 8681 SE 71ST ST Carthage MO. 64836 an address non existing.

26. March 09, 2021, Kathleen wolf Miller filed an ENTRY OF APPEARANCE pro bono (exhibit ENTRY OF APPEARANCE)

27. February 17, 2022 was to be the first and only hearing held in person where I was to be represented by counsel and it was rescheduled to March 10, 2022 and then to March 31, 2022 All of which counsel did not appear .

28. March 31 2022 judge Vorhees on the record announced that if she didn't show the next court appearance that Kathleen Wolf Miller would be held in contempt and that we would proceed with or without her.

29..on April 7 2022 the motion to modify from reunification to adoption requested by juvenile division was held some 3 hearings from the Hearing original scheduled on February 17 2022 where counsel failed to appear every time

30 Appellate is unsure exactly when Kathleen Wolf Miller Withdrew for a prosecutorial role creating a possible conflict of interest.

31. Spellman Robertson was appointed on October 26, 2022, several unsuccessful attempts were made to contact Mr. Robertson before trial that were brought in person by M.G, to the clerk's office about my concerns' A single day prior to trial I was able to meet with Attorney Spellman, exhibit (NOTICE OF COURT APPOINTMENT FOR SPELLMAN ROBERTSON)

Petitioner highlights the shortcomings in the presentation of evidence at the trial level and the necessity for allowances in presenting such evidence at the appellate stage, as advised by: **In re A.M.A., (Court of Appeals of Texas, 2021)**, wherein the complexities of presenting contradictory evidence by pro se litigants in appellate court were contemplated.

I have meticulously adhered to a stringent rehabilitation program, successfully completing substance abuse treatment, and have had no instance of illegal substance use since completing treatment under the aegis of The Peoples Network. Reports and attestations from Client services corroborate this milestone (Exhibit. letter from TPN highlighting accomplishments in the treatment program) post-treatment evaluations starkly contravene the pre-existing assumptions, underscoring my unwavering commitment to sobriety and responsible parenthood and contradicting the claim of not doing a drug evaluation or mental health evaluation and case plan. (Exhibit assessment sent to Kathleen Wolf Miller)

INSUFFICIENT COUNSEL REPRESENTATION

Petitioner contends that his right to effective counsel was compromised as evidenced by the following:

- **Lucas v. Jones, (Supreme Court of Arkansas, 2012)**, which highlights the requisite standards for appointing counsel for indigent individuals, underscoring such appointment as essential for ensuring fairness in judicial proceedings.
- **United States ex rel. McDonald v. Hodge, (UNITED STATES DISTRICT COURT NORTHERN DISTRICT OF ILLINOIS EASTERN DIVISION, 2012)**, offers insight into the implications of the withdrawal of appointed counsel, a principle that bears relevance to Petitioner's case where counsel withdrawal was executed prematurely without proper notice or consent.
- **Alameda Cnty. Soc. Servs. Agency v. M.B. (In re A.R.)** My right to effective assistance of counsel was severely compromised throughout the dependency proceedings. Initially unrepresented, the involvement of appointed counsel Kathleen Wolf Miller was brief, as her premature actions and unnotified withdrawal, along with the appointment of Ron Sparling—a detail I was unaware of until my attempts to self-represent—were detrimental to the case. Subsequently, Spellman Robertson was unprepared to navigate my case at trial, with only a single day's notice before proceedings commenced. Given the premature motion to reconsider filed during juvenile dependency stages and the subsequent withdrawal of counsel without due notice or consent, the situation merits a reevaluation, guided by pertinent case law:
- **S.B. v. DEPT. OF CHILDREN AND FAM** lends credence to the challenge of ineffective assistance, especially in dependency proceedings where the qualifications of appointed counsel are crucial.
- **In re O.S., supra, 102 Cal.App.4th 1402, 1406.** elucidates the critical need for notice and the opportunity for legal representation to establish paternal claims and defend parental rights effectively.
- **In re Emily A. 9Cal. App.4th 1695** provides judicial guidance on the criteria to assess effective legal representation, a benchmark that was not met in this case.
- **L.W. v. DEPT. OF CHILDREN AND FAMILIES** underscores the importance of competent legal representation, particularly for indigent parents, setting a precedent overlooked in my situation.

RIGHT TO SELF-REPRESENTATION/DIRECT ONE'S OWN DEFENCE

Further asserting his right to self-representation and to control his defense, as delineated in:

- **McKASKLE v. WIGGINS, (465 U.S. 168, U.S. Supreme Court, 1984),** which firmly establishes a defendant's prerogative to self-representation and underscores the significance of declarant control within their defense.
- **Romero v. State, (Court of Appeals of Texas, Fifth District, Dallas, 2024),** which discusses the procedural necessities and the protected right of a party in electing to represent themselves at the appellate level.

Procedural Irregularities Concerning other areas of procedural mishandling that Petitioner seeks to bring before the Court, attention is drawn to

- **Cone v. Bell, (556 U.S. 449, U.S. Supreme Court, 2009),** that converses on the grave consequences of ineffective assistance of counsel, including the ramifications of withholding crucial evidence.
- **Lassiter v. Department of Social Services**

DUE PROCESS VIOLATIONS

• **In re P.D., (144 S.W.3d 907, Missouri Court of Appeals, Eastern District., 2004),** which gives a narrative on the adverse impact of denying motions for continuance and how such denials could impinge upon due process rights. The proceedings have been marred by several anomalies, inviting the court's scrutiny for a fair reassessment Including the request by Spellman before Trial requesting continuance for having little or no contact with Appellate.

● **PREMATURE FILING OF MOTIONS:**

The motion to reconsider was filed prematurely during the initial dependency procedures before I could attain adequate counsel, at several periods during the abuse and neglect case I was without council in which I felt as if something should be filed of course without counsel it most certainly ended resulting in considerable prejudice against my legal position.

WITHDRAWAL OF COUNSEL:

Multiple attorneys throughout the duration of the court process as well as counsel assigned to me missed several scheduled hearings and also withdrew without providing notice or securing consent, leaving me unrepresented at a crucial point, contravening expected procedural norms.

INSUFFICIENCY OF EVIDENCE

- **Santosky v. Kramer 455 U.S. 745 (1982)** Referenced within the Bess v. Barroso citation, this case sets a high standard of proof (clear and convincing evidence) for the termination of parental rights,

ACCUSATION OF CHEMICAL DEPENDENCY

Additionally, essential to this motion is the invalid accusation of chemical dependency leveled against me without substantial evidence or the benefit of robust legal defense, which questions the veracity and sufficiency of the evidence presented at trial .

- **KOHL v. LEHLBACK 160 U.S. 293 (1895)**

16 S. Ct. 304

New Evidence and Procedural Irregularities Subsequent to the Court's decision, new evidence has surfaced that warrants reevaluation. Concurrently, procedural missteps, including inadequate legal counsel and misdirected communications, have prejudiced the judicial outcome.

- Allegations concerning my history with substances have been predicated on fragile testimonies and reports, devoid of the crucial context which elucidates a journey of resilience and reform, culminating in my current abstinent lifestyle
- Procedural missteps marked by a premature motion to reconsider induce a pressing need for a retrospective evaluation, while the allegations of chemical dependency, void of substantiated proof, further augment of my petition for this Court to grant rehearing.

JURISDICTION AND VENUE:

The federal courts are implored, under **42 U.S.C. § 1983** and as per the doctrine of Ex-Parte Young, to provide relief from ongoing violations of due process concerning the enforcement of the State of Missouri's termination of my parental rights. In addition, the jurisdiction of the abuse and neglect proceedings is questioned, drawing upon:

- **STANLEY v. ILLINOIS, (405 U.S. 645, U.S. Supreme Court, 1972)**, which upholds the rights of parents in judicial proceedings, directly impacting the context of the present case involving the rights and assertions made by an unwed father.

• Jurisdictional Concerns and Miscommunications

The administrative grievance of jurisdictional overstep looms over this case. My perpetual presence in my son's life rebut this overreach, and the inadvertent

misplacement of crucial communications hamstrung my capability to navigate through my legal predicaments.

- I respectfully invoke the Court to employ its mandated jurisdiction under federal law to afford an equitable resolution to the rights infringed upon within the state judiciary's confines.

G. Denial of parental rights:

In re **Stephanie M.**, F04CP15003270B (Conn. Super. Ct. Nov. 30, 2017) and In re **Marilyn H.**, 5 Cal.4th 295, 19 Cal. Rptr. 2d 544, 851 P.2d 826 (Cal. 1993) were My rights were restricted solely based on the mother's actions, and challenge this decision, arguing that it is an inappropriate punitive measure against me when I was not the parent responsible for the neglect.

E. Implications of the ICPC Assessment Not Performed

Youngberg v. Romeo, 457 U.S. 307, 102 S. Ct. 2452 (1982) An ICPC assessment's glaring omission has potentially exposed my son to unwarranted perils of well documented sexual and physical abuse in his current adoptive placement within the foster system, a scenario that could have been mitigated or preempted with appropriate diligence. (Exhibit emails to and from case supervisor)

Argument Highlights

I. Novel Application of Ex Parte Young to Family Law In a groundbreaking argument, I assert that the principles of the Ex Parte Young doctrine be extended to encompass state family law proceedings. This unconventional approach seeks judicial acknowledgment that constitutional violations within family law merit the same rigorous scrutiny and injunctive relief historically granted in other federal rights disputes.

II. Equal Parental Rights in Missouri law now recognizes paternal rights as being equal to maternal rights. This appeal shows how the lower court's decision fails to reflect these egalitarian principles and implores the Court to uphold the equitable treatment of fathers within the jurisdiction, thus carving a path for similar cases.

III. Ensuring Due Process Challenges to due process in this case underlines the importance of rigorous procedural safeguards, particularly where the risk of error carries profound consequences on familial bonds. This Court's intervention is imperative to affirm due process rights inherent in parental rights proceedings.

IV. The Intersection of Legal Representation and Self-Representation I illustrate the perils faced when effective counsel is absent, and the right to

self-representation is encumbered. This motion seeks the Court's injunction for more explicit guidelines to be set, thus safeguarding these rights for all litigants, especially those proceeding pro se.

V. Implications for Public Policy A favorable ruling will champion the indispensable role of fathers in children's lives, reinforcing the state's commitment to family integrity and the child's best interest — a ruling with profound ramifications for family law jurisprudence.

The precedent set forth in PEOPLE v. STULTZ by the Court of Appeals of the State of New York in 2004 underscores the crucial role that due process plays within judicial proceedings. In Stultz, the court rigorously examined the procedural safeguards to ensure that the rights of the individuals were not overshadowed by administrative expediency. In the present appeal, a similar comprehensive examination is warranted to determine whether due process was adequately provided during the proceedings culminating in the termination of my parental rights.

Similarly, JENNINGS v. WOODFORD, a decision by the United States Court of Appeals, Ninth Circuit in 2002, illustrates the pivotal nature of effective legal representation in the context of protecting constitutional rights. The Jennings court carefully parsed the impact of counsel's performance on the outcome of the case. Here, the appellant contends that parallels can be drawn regarding the inadequate representation received, thus casting significant doubt on the fairness of the trial's result.

In juxtaposition to our case, CLAUDIO v. SCULLY sheds light on the principles of justice being equally meted out to all parties involved in a family law context. In Claudio, the court meticulously addressed the balance between state interests and individual rights, particularly in the context of parental rights. The reflection of this balance is questioned in the case at bar, where the scales of justice seem to have tilted unfavorably and prematurely against the involvement and rights of a devoted father. Therefore, premised on the aforementioned arguments and antecedent case laws which highlight the jurisprudence surrounding due process and effective counsel, the petitioner respectfully submits this motion for the court's reconsideration and requests an en banc review to revisit and potentially rectify the decision pertaining to the termination of parental rights.

Coupled with the presented new evidence, the aforementioned cases assert the appellant's stance that significant procedural irregularities occurred. Such occurrences testify to the need for an injunction to halt the enforcement of the termination order. This would prevent ongoing violations of the appellant's

federal rights under 42 U.S.C. § 1983 and the protective doctrine established in EX PARTE Young.

The petitioner submits that granting these requests is not only in the best interest of K.C.G. but also upholds the integrity of legal proceedings and the fundamental principles of due process and parental rights—cornerstones of our judicial system and society as a whole

CLAIM FOR RELIEF:

The failure to conduct an ICPC assessment or consider placement with the undersigned Petitioner, despite pre-established shared custody, constitutes a continuous violation of due process rights as guaranteed by the Fourteenth Amendment. Furthermore, Merging the aforementioned variables fabricates an undeniable tapestry of judicial oversight and systemic faltering. Cumulatively, these factors have precipitated an injustice that beckons redress. This appeal is constructed not solely on a father's fervent plea but is firmly rooted in the principles of justice and equity that embody the judicial mantle this Court espouses. A clarion call is made to this Honorable Court to issue a declaratory judgment affirming this case's role as a potential vanguard for constitutional applications in family law. Further, I beseech the Court for an injunction preventing the enforcement of my parental rights termination, pending a full and fair consideration of the issues I've presented. Finally, the Court is invited to grant any additional relief it deems appropriate, heralding a new epoch in the judicial valorization of fatherhood rights. [Fair notice] Granting this motion and considering the legal positions articulated would not only serve the ends of legal rectification for one father but would also potentially illumine the path for future jurisprudence, safeguarding the integrity of family and the sanctity of parental rights.

A. Due Process and Parental Rights Appellate Argues the importance of maintaining procedural due process and rely on *STANLEY v. ILLINOIS*, (405 U.S. 645, U.S. Supreme Court, 1972), *Santosky v. Kramer*: Referenced within the *Bess v. Barroso* citation, these cases set a high standard of proof (clear and convincing evidence) for the termination of parental rights,;

B. Ineffective Assistance of Counsel The appellant respectfully asserts that the assistance of counsel provided during the preliminary and subsequent hearings was

not within the standard required by the Sixth Amendment as defined by the United States Supreme Court in *Strickland v. Washington*. To establish a claim of ineffective assistance of counsel, two requirements must be met: first, that counsel's performance was deficient; second, that the deficient performance prejudiced the defense.

1. Deficient Performance

Counsel's performance was deficient in several critical respects:

- Failure to file key motions: Counsel did not file motions essential to the protection of the appellant's parental rights, including motions to challenge the sufficiency of the evidence against the appellant and motions to suppress evidence introduced in violation of the appellant's rights.
- Lack of preparation for hearings: On numerous occasions, counsel appeared at hearings without having adequately prepared the case, failing to call important witnesses, or present crucial evidence in defense of the appellant's ability and right to parent.
- Inadequate communication: Counsel failed to maintain reasonable communication with the appellant, depriving him of the opportunity to make informed decisions and to contribute effectively to his own defense.

2. Prejudice to the Defense

The deficient performance of counsel resulted in substantial prejudice to the defense. Critical evidence favorable to the appellant was not introduced, cross-examination of the state's witnesses was insufficient, and potential defenses were not raised, thereby denying the appellant the opportunity for a fair trial. According to *McKaskle v. Wiggins*,

this failure undermines the "adversary process that our system counts on to produce just results."

3. Applicable Authorities

In alignment with aforementioned standards, the appraisal of counsel's effectiveness must be grounded in an objective standard of reasonableness under prevailing professional norms:

- In *Luleff v. State and State ex rel. J.D.S. v. Edwards*, the Missouri Supreme Court emphasized the duty of defense counsel to engage in active advocacy and pursue a strategic defense, obligations unmet in the present case.

· The U.S. Supreme Court in *Stanley v. Illinois* underscored the importance of process in parental rights adjudications - a process hampered by ineffective counsel, leading to a failure in safeguarding the appellant's due process rights as mandated in *Santosky v. Kramer*.

C. Request for En Banc Review

The appellant respectfully requests an en banc review of this case to address significant legal issues and discrepancies in the application of family law that extend beyond the individual circumstance. The complexity and importance of the issues raised herein warrant the collective expertise and judgment of the full bench of the Missouri Court of Appeals.

1. Significance of Constitutional Issues

This appeal presents substantial constitutional questions that are pivotal for determining parental rights not only within the purview of Missouri law but also in interpreting the interface between state and federal jurisprudence regarding civil rights under 42 U.S.C. § 1983 as elaborated in *Green v. Mansour* and due process protections under the Fourteenth Amendment as expounded in *Lassiter v. Department of Social Services*.

2. Broader Implications for Family Law

The issues at stake hold the potential to set vital precedents affecting the future interpretation and application of parental rights in Missouri. They also raise broad legal questions regarding the representation of pro se litigants and the effective assistance of counsel — concerns which the Missouri Supreme Court has noted require careful consideration as highlighted in *Luleff v. State* and *J.A.R. v. D.G.R.*.

3. Discrepancies in Legal Interpretation

This case has uncovered meaningful inconsistencies in the judicial application of established law which echo sentiments expressed in *State ex rel. J. D. S. v. Edwards*. There is a clear need for authoritative clarification that can only be provided by an en banc review. This will ensure uniformity and fairness in future proceedings, a necessity underlined by the Missouri Court of Appeals cases such as *In re P.D.* and *In re Interest of V.C.N.C.*.

4. Need for En Banc Consideration

The appellant submits that the instant case presents questions of exceptional importance. *McKaskle v. Wiggins* emphasizes the role of adversarial testing in preserving the integrity of the process, which is particularly pertinent in cases

regarding the termination of parental rights, an area where state and federal interests often intersect as portrayed in *Santosky v. Kramer* and *Stanley v. Illinois*.

Given the presence of these broad and significant legal questions and their implications for the public, as well as for the development of constitutional principles within the context of state family law proceedings, an en banc hearing is not only appropriate but essential. En banc consideration will allow for a more detailed and comprehensive analysis of these issues and will help to develop a coherent and fair body of law that adequately protects the rights of parents and the welfare of children across the state.

Therefore, the appellant respectfully insists that an en banc review by this Honorable Court is justified and requests the same in the interest of achieving the most equitable resolution of this case.

D. Application of 42 U.S.C. § 1983

The appellant hereby asserts the application of 42 U.S.C. § 1983 regarding violations of federal rights stemming from the unjust termination of parental rights. The actions contested within the scope of this appeal infringe upon Constitutionally protected rights and seek remedy through federal courts as per the allowances of this statute.

1. Violation of Federal Rights

The termination of parental rights, as adjudicated, in this case, has transgressed fundamental rights to due process and equal protection under the law. Such rights are not merely procedural but are substantive in nature, affecting life's most essential bond—between parent and child, as protected under the Fourteenth Amendment and underpinned by the legal narrative developed in *Santosky v. Kramer*.

2. State Actions Under 42 U.S.C. § 1983

When state actors, such as the juvenile office and its representatives, execute actions that lead to termination of parental rights, these actions become subject to scrutiny under 42 U.S.C. § 1983 if they contravene federal Constitutional rights. The Appellant avers that in the course of these proceedings, actions rising to the level of Constitutional violations have indeed occurred.

3. Relevance of *Green v. Mansour*, 474 U.S. 64, 106 S. Ct. 423 (1985) and *Pennsylvania v. Finley*, 481 U.S. 551, 107 S. Ct. 1990 (1987)

The principles established in *Green v. Mansour* and *Pennsylvania v. Finley* illuminate the considerations of this Court under 42 U.S.C. § 1983. While *Green v.*

Mansour details the limits of declaratory relief where no ongoing violation of federal law exists, the intensive involvement and interference by state actors in this case mandate federal intervention for the continued breach. Similarly, *Pennsylvania v. Finley* reinforces the idea that the right to appointed counsel extends beyond the criminal courtroom, especially in proceedings that place a heavy burden on an individual's rights — a stark similarity to the circumstances faced by the appellant.

4. Missouri Precedents and Federal Rights

Missouri case law notably recognizes the gravity of terminating parental rights, with the Supreme Court of Missouri in cases like *In re S.M.H.*, No. 07-18-00148-CV (Tex. App. Nov. 6, 2019) requiring clear and convincing evidence. When federal rights are compromised, as claimed here, an immediate and federal judicial purview becomes necessary, invoking 42 U.S.C. § 1983 as a defensive bulwark.

5. Conclusion

It is presented to this Honorable Court that the totality of actions culminating in the termination of the appellant's parental rights not merely infringe upon state law but elevate the dispute to a federal forum under the auspices of 42 U.S.C. § 1983. The appellant invokes this statute to correct the injustices born out of state action, rectify ongoing violations of federal law, and restore the appellant's rights as a parent that have been inappropriately severed.

In light of the above, the appellant respectfully requests this Court to grant an injunction to halt the enforcement of the termination order under the weight of 42 U.S.C. § 1983 and to interpret the facts in light of the Constitutional guarantees that frame the canvas of this nation's legal ethos.

In light of the above, the appellant respectfully requests this Court to grant an injunction to halt the enforcement of the termination order under the weight of 42 U.S.C. § 1983 and to interpret the facts in light of the Constitutional guarantees that frame the canvas of this nation's legal ethos.

F. Equitable Relief and Jurisdiction

In light of the new evidence and significant rehabilitation efforts of the appellant, there is a compelling case for the issuance of equitable relief to prevent ongoing violations of constitutional rights. Accordingly, the appellant invokes the court's jurisdiction to issue such relief, as is consistent with the principles established in *Ex parte Young* and supported by a thread of precedential authorities which afford

this honorable court the power to act justly in the face of potential miscarriages of justice.

1. The Necessity of Injunctive Relief

The appellant has demonstrated a substantive change in circumstances that directly affect the welfare of K.C.G. In accordance with the federal oversight afforded by 42 U.S.C. § 1983, and as illuminated through the lens of the *Ex parte Young* doctrine, there is critical jurisdiction for a federal remedy against ongoing state action perceived to violate the appellant's federal rights. The provision of injunctive relief becomes not merely a provision of equity but a necessity to prevent the ongoing deprivation of rights assured under the Fourteenth Amendment.

2. Applicable Federal and State Authorities

The authority under *Ex parte Young* enables the court to issue injunctions when constitutional rights are at stake, effectively halting state enforcement actions that are against federal law. Furthermore, consistent with Missouri's judicial observations — as seen in *State ex rel. J. D. S. v. Edwards*, 574 S.W.2d 405 (Mo. 1978) and *In re P.D., No. 11-1698* (W. Va. Jun. 25, 2012) — this call for suspension of the state's decision is rooted in the need to preserve the appellant's rights pending a closer examination of the adverse effects that such statutory actions may impose on him.

3. Supported by the Guidelines in *Ex parte Young*

Ex parte Young provides a clear basis for the federal court to enjoin state officials from enforcing state laws that are in violation of the federal Constitution. In this context, the termination of the appellant's parental rights without due regard for his recent improvements and compelling evidence not only challenges the doctrines established in cases like *Lassiter v. Department of Social Services* and *Santosky v. Kramer* but also suggests a departure from the rigors of procedural due process.

VI. CONCLUSION AND PRAYER FOR RELIEF

In conclusion, the appellant respectfully requests a reevaluation of the decision by this Honorable Court based on the principles of fairness, the presentation of new evidence, and relevant federal and state law considerations.

Prayers for relief include:

1. Reassessment of the decision terminating parental rights based on updated evidence and due process considerations.
2. The convening of an en banc court to review significant legal questions presented in this case.
3. Issuance of an injunction to halt the enforcement of the termination order pending a reevaluation of this case under the proper application of the law.
4. Any other relief that this Court deems just and proper

Based on the above-mentioned authorities, alongside compelling facts and circumstances apparent in the record, Petitioner respectfully requests that this Honorable Court grant the Motion to Reconsider. Petitioner seeks the opportunity to address the deficiencies noted herein and achieve an outcome that embodies the just, equitable principles that underpin our legal system. For the reasons stated, I respectfully request that the court grants this motion for reconsideration. I appeal to the Court's equitable conscience to deliberate on the arguments herein with the urgency and gravity they warrant. It is not merely the father's right that rests in the balance but the unfolding future of Kody Goodman, over whose welfare I remain steadfastly vigilant. Ergo, I beseech the Court to sanction this motion, to initiate an en banc review with alacrity, and should it be deemed essential, to endorse a transfer to a judicial forum equipped to extend this case the breadth of consideration it merits. We put our faith in the hope that the Court's wisdom will navigate us to a just and compassionate resolution. Failing to do so not only affect my parental rights but more importantly, impacts the well-being and welfare of my son, Kody Goodman. Embracing the intricacies of this case, the Court has the esteemed duty of delivering justice not only to an individual but potentially to the very structure of family law jurisprudence. The outcomes sought herein stand to thoroughly embody the noblest legal principles, offering sturdy protection for paternal rights and setting a precedent of considerable legal worth.

. Respectfully submitted,

Matthew Goodman

8681 SE 71ST

BAXTER SPRINGS KS 66713

phone 417-388-0890

Missouri Court of Appeals
Southern District

No. SD38180

IN THE INTEREST OF K.C.G.	)	
	)	
JASPER COUNTY JUVENILE OFFICE,	)	
B.L.M., AND C.T.A.M.,	)	
	)	
Respondents,	)	
	)	
vs.	)	
	)	
M.P.G.,	)	
	)	
Appellant.	)	

FILED
APR 10 2024
CRAIG A. STREET, CLERK
MISSOURI COURT OF APPEALS
SOUTHERN DISTRICT

ORDER

Now on this day, the Court takes up appellant's correspondence dated April 8, 2024, which the Court construes as a motion for an extension of time to file a motion for rehearing and/or application for transfer. Having fully considered the same, the Court grants leave to appellant, until **April 30, 2024**, to file a motion for rehearing and/or application for transfer. Any other relief requested in the motion is hereby denied.

Also, on this day, the Court takes up appellant's second letter dated April 8, 2024. The Court denies any relief requested therein.

cc: Attorneys of Record – via the electronic filing system
Matthew Goodman – via email and U.S. mail

Matthew Goodman

8681 SE 71ST ST

Baxter Springs KS. 66713

malcolmgoodmen@gmail.com

417-388-0890

Date: 2024-04-09

Craig A. Street, Clerk Missouri Court of Appeals 300 S. Hammons Pkwy Ste 300
Springfield MO.

Dear Mr. Street,

I write to address specific procedural and legal oversights that have significantly impacted the outcome of the dependency proceedings involving my son, Kody Goodman. This motion seeks reconsideration of the judgment on grounds that it is multifaceted and materially affects my right to fair representation and due process. Moreover, this motion challenges the validity of the judgment about the termination of my parental rights over Kody Goodman, under appeal number SD38180 and 22AO-JU00288.

As I continue to assert my parental rights, I question the judicial process leading to the termination. This motion presents a critical opportunity for this Court to reexamine and potentially reshape the principles governing the fairness and equality of parental rights, the application of federal rights under 42 U.S.C. § 1983 in state proceedings, and to reinforce the constitutional safeguards of due process. In grappling with these pivotal issues, this Court has the unique capacity to render a decision that may serve as a benchmark for the protection of paternal rights and equitable jurisprudence nationwide

IN THE MISSOURI COURT OF APPEALS SOUTHERN DISTRICT

Appeal No. SD38180

IN THE INTEREST OF K.C.G. M.P.G. Appellant, vs. B.L.M. and C.T.A.M.,
JASPER

COUNTY JUVENILE OFFICE, Respondent

MOTION FOR RECONSIDERATION, REQUEST FOR EN BANC REVIEW
TRANSFER, AND PETITION FOR INJUNCTIVE RELIEF FOR ONGOING
VIOLATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983 AND THE EX
PARTE YOUNG DOCTRINE

On Appeal from the Circuit Court of Jasper County For the 29th District of
Missouri

MATTHEW PRESTON GOODMAN Telephone: 417 –388-0890
Malcolmgoodmen@gmail.com Pro Se Litigant.,

TABLE OF AUTHORITIES

- **42 U.S.C. § 1983**: This federal statute provides a means for citizens to seek relief against the violation of their constitutional rights by persons acting under state law.².
- **Ex parte Young, 209 U.S. 123 (1908)**: A U.S. Supreme Court case that allows federal courts to order state officials to comply with federal law.
- **Claudio v. Scully, 982 F.2d 798 (2d Cir. 1992)**
- **PEOPLE v. STULTZ, S263034 (Cal. Aug. 31,2010)**
- **JENNINGS v. WOODFORD,290 F.3d 1006 (9th Cir. 2002)**
- **Lucas v. Jones, (Supreme Court of Arkansas, 2012)**: A case relating to the standards for appointing counsel for indigent individuals.
- **United States ex rel. McDonald v. Hodge, (UNITED STATES DISTRICT COURT NORTHERN DISTRICT OF ILLINOIS EASTERN DIVISION, 2012)**: A case that may address issues concerning the withdrawal of appointed counsel.
- **Alameda Cnty. Soc. Servs. Agency v. M.B. (In re A.R.)**: Regarding effective assistance of counsel in dependency proceedings.
- **S.B. v. DEPT. OF CHILDREN AND FAM and In re O.S.**: Issues surrounding ineffective assistance and the right to legal representation in dependency proceedings.
- **In re EMILYE A and L.W. v. DEPT. OF CHILDREN AND FAMILIES**: Standards for evaluating legal representation in cases involving parental rights.
- **McKASKLE v. WIGGINS, (465 U.S. 168, U.S. Supreme Court, 1984)**: A case discussing the right to direct one's own defense.
- **Romero v. State, (Court of Appeals of Texas, Fifth District, Dallas, 2024)**: A case dealing with self-representation at the appellate level.
- **Cone v. Bell, (556 U.S. 449, U.S. Supreme Court, 2009)**: A case concerned with ineffective assistance of counsel and withholding evidence.

- **Lassiter v. Department of Social Services:** A U.S. Supreme Court case about the right to appointed counsel in civil cases that involve the termination of parental rights.
- **In re P.D., (144 S.W.3d 907, Missouri Court of Appeals, Eastern District.,2004):** Discusses the impact of denied motions for continuance on due process rights.
- **STANLEY v. ILLINOIS, (405 U.S. 645, U.S. Supreme Court, 1972):** A Supreme Court case regarding the due process rights of parents in judicial proceedings.
- **In re Stephanie M., In re Marilyn H:** Circumstances under which parental rights may be terminated.
- **Youngberg v. Romeo, 457 U.S. 307, 102 S. Ct. 2452 (1982):** A case about the rights of involuntarily committed persons, which might be applied by analogy, and imply K.G has the right to safety in current placement
- **Santosky v. Kramer:** Sets the standard of proof for termination of parental rights as "clear and convincing evidence."
- **KOHL v. LEHLBACK 160 U.S. 293 (1895):** A case reference that may pertain to due process or parental rights.
- **Green v. Mansour, Pennsylvania v. Finley:** Cases discussing the rights to seek remedy under 42 U.S.C. § 1983.
- **In re S.M.H.:** A case requiring clear and convincing evidence for the termination of parental rights as per Missouri law.
- **Strickland v. Washington:** A U.S. Supreme Court case laying out the standard for claims of ineffective assistance of counsel.
- **Luleff v. State and State ex rel. J.D.S. v. Edwards:** Cases that address the role of counsel in legal defenses and the procedural processes in parental rights adjudications.

JURISDICTIONAL STATEMENT

This appeal is properly before the Missouri Court of Appeals for the Southern District pursuant to Rule 30.01(d) of the Missouri Rules of Appellate Procedure, following a final judgment from the Circuit Court of Jasper County for the 29th District of Missouri. This Court has jurisdiction under Mo. Rev. Stat. § 512.020, as the appeal seeks review of a final judgment involving the termination of parental rights, a decision appealable as of right. Furthermore, the issuance of injunctive relief against ongoing violations of Federal Rights, including those rights protected under 42 U.S.C. § 1983, invokes this Court's Jurisdiction under the EX PARTE YOUNG DOCTRINE, which allows Federal Courts to enjoin state officials from violating Federal Law, as established by the United States Supreme Court in *Ex parte Young*, 209 U.S. 123 (1908). This motion timely follows the entry of judgment, adhering to the timeframe established by Rule 84.04 of the Missouri Rules of Appellate Procedure, ensuring that the Court may exercise its jurisdiction to provide relief as necessary.

STANDARD OF REVIEW

In the appeal concerning the interests of K.C.G., and the subsequent legal matters involving M.P.G., Appellant vs. B.L.M. and C.T.A.M., Jasper County Juvenile Office, Respondents, the standards of review that the Missouri Court of Appeals, Southern District, should employ are delineated as follows:

1. DE NOVO REVIEW:

For questions of jurisdiction and legal interpretation, which involve the thorough examination of statutory provisions, case law, and constitutional principles, a de novo standard of review is essential. When reviewing these matters, the Appellate Court exercises an independent, non-deferential judgment. This court must reassess the standard of review for legal issues presented without presumption of correctness of the lower court's ruling, ensuring that the legal foundations dictating the outcome of the case are solidly in accordance with the law and legal precedent.

2. SUBSTANTIAL EVIDENCE STANDARD:

In reviewing the factual findings made by the trial Court, the standard of review should shift to the substantial evidence test. This standard directs the appellate court to affirm the lower court's determinations if the findings are supported by substantial evidence on the record. Substantial evidence is such relevant evidence that a reasonable mind might accept as adequate to support a conclusion, even if it is possible to draw two inconsistent conclusions from the evidence. (“*Giha v. Garland*, No. 15-73085 (9th Cir. 2021) :: Justia”) The question is not whether the evidence could support a different conclusion but whether it supports the conclusion that was reached by the trial Court.

3. CLEARLY ERRONEOUS STANDARD:

When addressing the potential clear error in the trial court's findings of fact, it is warranted that such findings are left undisturbed unless the reviewing court, on the entire evidence, is left with the definite and firm conviction that a mistake has been made. This heightened degree of assurance in the trial court's factual accuracy recognizes the trial judge's role as the primary factfinder, having had the opportunity to observe witness demeanor and to weigh the evidence presented firsthand.

The employment of these distinct standards of review acknowledges the dual nature of appellate scrutiny, where legal issues are reviewed with precision and independence, and factual determinations are accorded deference unless they fall short of the evidentiary benchmark or are manifestly erroneous.

1. BACKGROUND

1. K.G was born October 13,2018
2. K.G resided with mother at 1441 Kimberling Lane Apartment E., Carthage MO.64836 at the time the dependency case was initiated.
3. Father of K.G is M.G
- 4.Father resided at 8681 SE 71ST ST BAXTER SPRINGS KS when the case began and still resides at the same address.
5. The case at hand originated from complex child in need of services (CHINS) proceedings which resulted in the controversial termination of my parental rights
- .6. Appellate hired an attorney and petitioned the Court to establish paternity and custody. And to change last name of K.G from Alton to Goodman; on or about 9-5-2019
7. A judgment of Paternity and Order of Custody from Angela Vorhees the same judge who conducted the trial in question for the termination of parental rights was issued on or about 9-4-2019 a year and a half prior to the proceedings of abuse and neglect by the mother of K.G were initiated
8. The decree granted M.G 50/50 physical and legal custody, then once K.G turned 3 years old M.G was to be granted visits with him every other two weeks for two weeks every other week.
9. On Jan 2,2021 K.G was taken to the emergency room in Carthage Mo. and had tested positive for an illegal substance.
- 10.K.G was removed from his mother's Custody.
11. At the time K.G was taken from his biological MOTHERS Custody father had visits every other weekend and every Wednesday in which K.G stayed with me in Kansas
- 12.At the time K.G was TAKEN from MOTHERS CUSTODY it was NOT fathers' weekend to have K.G in his immediate control care and custody.
- 13.Appellate could not have known of the situation living in Kansas at 8681 SE 71ST ST Baxter Springs KS 66713
- 14./Appellate became aware within days informed by his uncle who lived in Carthage MO. and attempted to intervene in the situation when K.G was sheltered at the. Childrens Haven in Joplin after a visit set up by myself and Kathleen after

multiple attempts to locate my son and finally was told about K.G, and his whereabouts".

15. I M.G was told I could not take my son from the Shelter by Jennifer Emmons, the situation being what it was I didn't argue because of the trauma already inflicted and the fact K.G was with his brother who isn't my biological son.

16. Multiple hearings were held without me being appointed counsel such as emergency shelter hearing on or about January 4,2021

17. Another hearing being an adjudication hearing on or about February 9, 2021 shown in notice received at location of hearing.

18. Again on or about 2-23-2021 All of which I had no counsel shown in notice I received at prior hearing as shown in exhibits.

19. Feb,23,2021 after not getting appointed counsel I had petitioned the court with a motion for rehearing noting that meaningful contact between my son K.G and I M.G was disrupted as proven by exhibits

20. February 23, 2021, father also filed a family access motion as shown in the notice of entry from the same date 2-23-2021

21. February 23, 2021, Father filed a MOTION TO PROCEED AS A POOR PERSON and a MOTION FOR FAMILY ACCESS also on February 23,2021 in the Circuit Court of Jasper County

22. Father M.G also filed in the

Family Court of Jasper County Missouri a MOTION TO MODIFY CUSTODY.

22. February 23, 2021, Court denied motions filed on February 23, 2021, And found that M.G had sufficient funds (Exhibit filed 2-23-2021) the MOTION TO MODIFY CUSTODY was stayed pending juvenile court jurisdiction.

23. The Circuit Court of Jasper County then appointed Ron Sparling without my knowledge on February 23, 2021, as shown in the Notice of court appointment presented in exhibits I seen this notice provided after requesting court files for the first time on June 6, 2022

24. As of today's date 19th of April 2024 the MOTION TO MODIFY CUSTODY has not been disposed

25. The court had mailed a notice to the wrong address in which the house number and street were correct not the city and State. Shown in exhibit provided a copy of

a letter mailed from Mellisa Holcomb to M.G at 8681 SE 71ST ST Carthage MO. 64836 an address non existing.

26. March 09, 2021, Kathleen wolf Miller filed an ENTRY OF APPEARANCE pro bono (exhibit ENTRY OF APPEARANCE)

27. February 17, 2022 was to be the first and only hearing held in person where I was to be represented by counsel and it was rescheduled to March 10, 2022 and then to March 31, 2022 All of which counsel did not appear .

28. March 31 2022 judge Vorhees on the record announced that if she didn't show the next court appearance that Kathleen Wolf Miller would be held in contempt and that we would proceed with or without her.

29..on April 7 2022 the motion to modify from reunification to adoption requested by juvenile division was held some 3 hearings from the Hearing original scheduled on February 17 2022 where counsel failed to appear every time

30 Appellate is unsure exactly when Kathleen Wolf Miller Withdrew for a prosecutorial role creating a possible conflict of interest.

31. Spellman Robertson was appointed on October 26, 2022, several unsuccessful attempts were made to contact Mr. Robertson before trial that were brought in person by M.G, to the clerk's office about my concerns' A single day prior to trial I was able to meet with Attorney Spellman, exhibit (NOTICE OF COURT APPOINTMENT FOR SPELLMAN ROBERTSON)

Petitioner highlights the shortcomings in the presentation of evidence at the trial level and the necessity for allowances in presenting such evidence at the appellate stage, as advised by: **In re A.M.A., (Court of Appeals of Texas, 2021)**, wherein the complexities of presenting contradictory evidence by pro se litigants in appellate court were contemplated.

I have meticulously adhered to a stringent rehabilitation program, successfully completing substance abuse treatment, and have had no instance of illegal substance use since completing treatment under the aegis of The Peoples Network. Reports and attestations from Client services corroborate this milestone (Exhibit. letter from TPN highlighting accomplishments in the treatment program) post-treatment evaluations starkly contravene the pre-existing assumptions, underscoring my unwavering commitment to sobriety and responsible parenthood and contradicting the claim of not doing a drug evaluation or mental health evaluation and case plan. (Exhibit assessment sent to Kathleen Wolf Miller)

INSUFFICIENT COUNSEL REPRESENTATION

Petitioner contends that his right to effective counsel was compromised as evidenced by the following:

- **Lucas v. Jones, (Supreme Court of Arkansas, 2012)**, which highlights the requisite standards for appointing counsel for indigent individuals, underscoring such appointment as essential for ensuring fairness in judicial proceedings.
- **United States ex rel. McDonald v. Hodge, (UNITED STATES DISTRICT COURT NORTHERN DISTRICT OF ILLINOIS EASTERN DIVISION, 2012)**, offers insight into the implications of the withdrawal of appointed counsel, a principle that bears relevance to Petitioner's case where counsel withdrawal was executed prematurely without proper notice or consent.
- **Alameda Cnty. Soc. Servs. Agency v. M.B. (In re A.R.)** My right to effective assistance of counsel was severely compromised throughout the dependency proceedings. Initially unrepresented, the involvement of appointed counsel Kathleen Wolf Miller was brief, as her premature actions and unnotified withdrawal, along with the appointment of Ron Sparling—a detail I was unaware of until my attempts to self-represent—were detrimental to the case. Subsequently, Spellman Robertson was unprepared to navigate my case at trial, with only a single day's notice before proceedings commenced. Given the premature motion to reconsider filed during juvenile dependency stages and the subsequent withdrawal of counsel without due notice or consent, the situation merits a reevaluation, guided by pertinent case law:
- **S.B. v. DEPT. OF CHILDREN AND FAM** lends credence to the challenge of ineffective assistance, especially in dependency proceedings where the qualifications of appointed counsel are crucial.
- **In re O.S., supra, 102 Cal.App.4th 1402, 1406.** elucidates the critical need for notice and the opportunity for legal representation to establish paternal claims and defend parental rights effectively.
- **In re Emilye A. 9Cal. App.4th 1695** provides judicial guidance on the criteria to assess effective legal representation, a benchmark that was not met in this case.
- **L.W. v. DEPT. OF CHILDREN AND FAMILIES** underscores the importance of competent legal representation, particularly for indigent parents, setting a precedent overlooked in my situation.

RIGHT TO SELF-REPRESENTATION/DIRECT ONE'S OWN DEFENCE

Further asserting his right to self-representation and to control his defense, as delineated in:

- **McKASKLE v. WIGGINS, (465 U.S. 168, U.S. Supreme Court, 1984),** which firmly establishes a defendant's prerogative to self-representation and underscores the significance of declarant control within their defense.
- **Romero v. State, (Court of Appeals of Texas, Fifth District, Dallas, 2024),** which discusses the procedural necessities and the protected right of a party in electing to represent themselves at the appellate level.

Procedural Irregularities Concerning other areas of procedural mishandling that Petitioner seeks to bring before the Court, attention is drawn to

- **Cone v. Bell, (556 U.S. 449, U.S. Supreme Court, 2009),** that converses on the grave consequences of ineffective assistance of counsel, including the ramifications of withholding crucial evidence.
- **Lassiter v. Department of Social Services**

DUE PROCESS VIOLATIONS

• **In re P.D., (144 S.W.3d 907, Missouri Court of Appeals, Eastern District., 2004),** which gives a narrative on the adverse impact of denying motions for continuance and how such denials could impinge upon due process rights. The proceedings have been marred by several anomalies, inviting the court's scrutiny for a fair reassessment Including the request by Spellman before Trial requesting continuance for having little or no contact with Appellate.

● **PREMATURE FILING OF MOTIONS:**

The motion to reconsider was filed prematurely during the initial dependency procedures before I could attain adequate counsel, at several periods during the abuse and neglect case I was without council in which I felt as if something should be filed of course without counsel it most certainly ended resulting in considerable prejudice against my legal position.

WITHDRAWAL OF COUNSEL:

Multiple attorneys throughout the duration of the court process as well as counsel assigned to me missed several scheduled hearings and also withdrew without providing notice or securing consent, leaving me unrepresented at a crucial point, contravening expected procedural norms.

INSUFFICIENCY OF EVIDENCE

- **Santosky v. Kramer 455 U.S. 745 (1982)** Referenced within the Bess v. Barroso citation, this case sets a high standard of proof (clear and convincing evidence) for the termination of parental rights,

ACCUSATION OF CHEMICAL DEPENDENCY

Additionally, essential to this motion is the invalid accusation of chemical dependency leveled against me without substantial evidence or the benefit of robust legal defense, which questions the veracity and sufficiency of the evidence presented at trial .

- **KOHL v. LEHLBACK 160 U.S. 293 (1895)**

16 S. Ct. 304

New Evidence and Procedural Irregularities Subsequent to the Court's decision, new evidence has surfaced that warrants reevaluation. Concurrently, procedural missteps, including inadequate legal counsel and misdirected communications, have prejudiced the judicial outcome.

- Allegations concerning my history with substances have been predicated on fragile testimonies and reports, devoid of the crucial context which elucidates a journey of resilience and reform, culminating in my current abstinent lifestyle
- Procedural missteps marked by a premature motion to reconsider induce a pressing need for a retrospective evaluation, while the allegations of chemical dependency, void of substantiated proof, further augment of my petition for this Court to grant rehearing.

JURISDICTION AND VENUE:

The federal courts are implored, under **42 U.S.C. § 1983** and as per the doctrine of Ex-Parte Young, to provide relief from ongoing violations of due process concerning the enforcement of the State of Missouri's termination of my parental rights. In addition, the jurisdiction of the abuse and neglect proceedings is questioned, drawing upon:

- **STANLEY v. ILLINOIS, (405 U.S. 645, U.S. Supreme Court, 1972)**, which upholds the rights of parents in judicial proceedings, directly impacting the context of the present case involving the rights and assertions made by an unwed father.

• Jurisdictional Concerns and Miscommunications

The administrative grievance of jurisdictional overstep looms over this case. My perpetual presence in my son's life rebut this overreach, and the inadvertent

misplacement of crucial communications hamstrung my capability to navigate through my legal predicaments.

- I respectfully invoke the Court to employ its mandated jurisdiction under federal law to afford an equitable resolution to the rights infringed upon within the state judiciary's confines.

G. Denial of parental rights:

In re **Stephanie M.**, F04CP15003270B (Conn. Super. Ct. Nov. 30, 2017) and In re **Marilyn H.**, 5 Cal.4th 295, 19 Cal. Rptr. 2d 544, 851 P.2d 826 (Cal. 1993) were My rights were restricted solely based on the mother's actions, and challenge this decision, arguing that it is an inappropriate punitive measure against me when I was not the parent responsible for the neglect.

E. Implications of the ICPC Assessment Not Performed

Youngberg v. Romeo, 457 U.S. 307, 102 S. Ct. 2452 (1982) An ICPC assessment's glaring omission has potentially exposed my son to unwarranted perils of well documented sexual and physical abuse in his current adoptive placement within the foster system, a scenario that could have been mitigated or preempted with appropriate diligence. (Exhibit emails to and from case supervisor)

Argument Highlights

I. Novel Application of Ex Parte Young to Family Law In a groundbreaking argument, I assert that the principles of the Ex Parte Young doctrine be extended to encompass state family law proceedings. This unconventional approach seeks judicial acknowledgment that constitutional violations within family law merit the same rigorous scrutiny and injunctive relief historically granted in other federal rights disputes.

II. Equal Parental Rights in Missouri law now recognizes paternal rights as being equal to maternal rights. This appeal shows how the lower court's decision fails to reflect these egalitarian principles and implores the Court to uphold the equitable treatment of fathers within the jurisdiction, thus carving a path for similar cases.

III. Ensuring Due Process Challenges to due process in this case underlines the importance of rigorous procedural safeguards, particularly where the risk of error carries profound consequences on familial bonds. This Court's intervention is imperative to affirm due process rights inherent in parental rights proceedings.

IV. The Intersection of Legal Representation and Self-Representation I illustrate the perils faced when effective counsel is absent, and the right to

self-representation is encumbered. This motion seeks the Court's injunction for more explicit guidelines to be set, thus safeguarding these rights for all litigants, especially those proceeding pro se.

V. Implications for Public Policy A favorable ruling will champion the indispensable role of fathers in children's lives, reinforcing the state's commitment to family integrity and the child's best interest — a ruling with profound ramifications for family law jurisprudence.

The precedent set forth in PEOPLE v. STULTZ by the Court of Appeals of the State of New York in 2004 underscores the crucial role that due process plays within judicial proceedings. In Stultz, the court rigorously examined the procedural safeguards to ensure that the rights of the individuals were not overshadowed by administrative expediency. In the present appeal, a similar comprehensive examination is warranted to determine whether due process was adequately provided during the proceedings culminating in the termination of my parental rights.

Similarly, JENNINGS v. WOODFORD, a decision by the United States Court of Appeals, Ninth Circuit in 2002, illustrates the pivotal nature of effective legal representation in the context of protecting constitutional rights. The Jennings court carefully parsed the impact of counsel's performance on the outcome of the case. Here, the appellant contends that parallels can be drawn regarding the inadequate representation received, thus casting significant doubt on the fairness of the trial's result.

In juxtaposition to our case, CLAUDIO v. SCULLY sheds light on the principles of justice being equally meted out to all parties involved in a family law context. In Claudio, the court meticulously addressed the balance between state interests and individual rights, particularly in the context of parental rights. The reflection of this balance is questioned in the case at bar, where the scales of justice seem to have tilted unfavorably and prematurely against the involvement and rights of a devoted father. Therefore, premised on the aforementioned arguments and antecedent case laws which highlight the jurisprudence surrounding due process and effective counsel, the petitioner respectfully submits this motion for the court's reconsideration and requests an en banc review to revisit and potentially rectify the decision pertaining to the termination of parental rights.

Coupled with the presented new evidence, the aforementioned cases assert the appellant's stance that significant procedural irregularities occurred. Such occurrences testify to the need for an injunction to halt the enforcement of the termination order. This would prevent ongoing violations of the appellant's

federal rights under 42 U.S.C. § 1983 and the protective doctrine established in EX PARTE Young.

The petitioner submits that granting these requests is not only in the best interest of K.C.G. but also upholds the integrity of legal proceedings and the fundamental principles of due process and parental rights—cornerstones of our judicial system and society as a whole

CLAIM FOR RELIEF:

The failure to conduct an ICPC assessment or consider placement with the undersigned Petitioner, despite pre-established shared custody, constitutes a continuous violation of due process rights as guaranteed by the Fourteenth Amendment. Furthermore, Merging the aforementioned variables fabricates an undeniable tapestry of judicial oversight and systemic faltering. Cumulatively, these factors have precipitated an injustice that beckons redress. This appeal is constructed not solely on a father's fervent plea but is firmly rooted in the principles of justice and equity that embody the judicial mantle this Court espouses. A clarion call is made to this Honorable Court to issue a declaratory judgment affirming this case's role as a potential vanguard for constitutional applications in family law. Further, I beseech the Court for an injunction preventing the enforcement of my parental rights termination, pending a full and fair consideration of the issues I've presented. Finally, the Court is invited to grant any additional relief it deems appropriate, heralding a new epoch in the judicial valorization of fatherhood rights. [Fair notice] Granting this motion and considering the legal positions articulated would not only serve the ends of legal rectification for one father but would also potentially illumine the path for future jurisprudence, safeguarding the integrity of family and the sanctity of parental rights.

A. Due Process and Parental Rights Appellate Argues the importance of maintaining procedural due process and rely on *STANLEY v. ILLINOIS*, (405 U.S. 645, U.S. Supreme Court, 1972), *Santosky v. Kramer*: Referenced within the *Bess v. Barroso* citation, these cases set a high standard of proof (clear and convincing evidence) for the termination of parental rights,;

B. Ineffective Assistance of Counsel The appellant respectfully asserts that the assistance of counsel provided during the preliminary and subsequent hearings was

not within the standard required by the Sixth Amendment as defined by the United States Supreme Court in *Strickland v. Washington*. To establish a claim of ineffective assistance of counsel, two requirements must be met: first, that counsel's performance was deficient; second, that the deficient performance prejudiced the defense.

1. Deficient Performance

Counsel's performance was deficient in several critical respects:

- Failure to file key motions: Counsel did not file motions essential to the protection of the appellant's parental rights, including motions to challenge the sufficiency of the evidence against the appellant and motions to suppress evidence introduced in violation of the appellant's rights.
- Lack of preparation for hearings: On numerous occasions, counsel appeared at hearings without having adequately prepared the case, failing to call important witnesses, or present crucial evidence in defense of the appellant's ability and right to parent.
- Inadequate communication: Counsel failed to maintain reasonable communication with the appellant, depriving him of the opportunity to make informed decisions and to contribute effectively to his own defense.

2. Prejudice to the Defense

The deficient performance of counsel resulted in substantial prejudice to the defense. Critical evidence favorable to the appellant was not introduced, cross-examination of the state's witnesses was insufficient, and potential defenses were not raised, thereby denying the appellant the opportunity for a fair trial. According to *McKaskle v. Wiggins*,

this failure undermines the "adversary process that our system counts on to produce just results."

3. Applicable Authorities

In alignment with aforementioned standards, the appraisal of counsel's effectiveness must be grounded in an objective standard of reasonableness under prevailing professional norms:

- In *Luleff v. State and State ex rel. J.D.S. v. Edwards*, the Missouri Supreme Court emphasized the duty of defense counsel to engage in active advocacy and pursue a strategic defense, obligations unmet in the present case.

· The U.S. Supreme Court in *Stanley v. Illinois* underscored the importance of process in parental rights adjudications - a process hampered by ineffective counsel, leading to a failure in safeguarding the appellant's due process rights as mandated in *Santosky v. Kramer*.

C. Request for En Banc Review

The appellant respectfully requests an en banc review of this case to address significant legal issues and discrepancies in the application of family law that extend beyond the individual circumstance. The complexity and importance of the issues raised herein warrant the collective expertise and judgment of the full bench of the Missouri Court of Appeals.

1. Significance of Constitutional Issues

This appeal presents substantial constitutional questions that are pivotal for determining parental rights not only within the purview of Missouri law but also in interpreting the interface between state and federal jurisprudence regarding civil rights under 42 U.S.C. § 1983 as elaborated in *Green v. Mansour* and due process protections under the Fourteenth Amendment as expounded in *Lassiter v. Department of Social Services*.

2. Broader Implications for Family Law

The issues at stake hold the potential to set vital precedents affecting the future interpretation and application of parental rights in Missouri. They also raise broad legal questions regarding the representation of pro se litigants and the effective assistance of counsel — concerns which the Missouri Supreme Court has noted require careful consideration as highlighted in *Luleff v. State* and *J.A.R. v. D.G.R.*.

3. Discrepancies in Legal Interpretation

This case has uncovered meaningful inconsistencies in the judicial application of established law which echo sentiments expressed in *State ex rel. J. D. S. v. Edwards*. There is a clear need for authoritative clarification that can only be provided by an en banc review. This will ensure uniformity and fairness in future proceedings, a necessity underlined by the Missouri Court of Appeals cases such as *In re P.D.* and *In re Interest of V.C.N.C.*.

4. Need for En Banc Consideration

The appellant submits that the instant case presents questions of exceptional importance. *McKaskle v. Wiggins* emphasizes the role of adversarial testing in preserving the integrity of the process, which is particularly pertinent in cases

regarding the termination of parental rights, an area where state and federal interests often intersect as portrayed in *Santosky v. Kramer* and *Stanley v. Illinois*.

Given the presence of these broad and significant legal questions and their implications for the public, as well as for the development of constitutional principles within the context of state family law proceedings, an en banc hearing is not only appropriate but essential. En banc consideration will allow for a more detailed and comprehensive analysis of these issues and will help to develop a coherent and fair body of law that adequately protects the rights of parents and the welfare of children across the state.

Therefore, the appellant respectfully insists that an en banc review by this Honorable Court is justified and requests the same in the interest of achieving the most equitable resolution of this case.

D. Application of 42 U.S.C. § 1983

The appellant hereby asserts the application of 42 U.S.C. § 1983 regarding violations of federal rights stemming from the unjust termination of parental rights. The actions contested within the scope of this appeal infringe upon Constitutionally protected rights and seek remedy through federal courts as per the allowances of this statute.

1. Violation of Federal Rights

The termination of parental rights, as adjudicated, in this case, has transgressed fundamental rights to due process and equal protection under the law. Such rights are not merely procedural but are substantive in nature, affecting life's most essential bond—between parent and child, as protected under the Fourteenth Amendment and underpinned by the legal narrative developed in *Santosky v. Kramer*.

2. State Actions Under 42 U.S.C. § 1983

When state actors, such as the juvenile office and its representatives, execute actions that lead to termination of parental rights, these actions become subject to scrutiny under 42 U.S.C. § 1983 if they contravene federal Constitutional rights. The Appellant avers that in the course of these proceedings, actions rising to the level of Constitutional violations have indeed occurred.

3. Relevance of *Green v. Mansour*, 474 U.S. 64, 106 S. Ct. 423 (1985) and *Pennsylvania v. Finley*, 481 U.S. 551, 107 S. Ct. 1990 (1987)

The principles established in *Green v. Mansour* and *Pennsylvania v. Finley* illuminate the considerations of this Court under 42 U.S.C. § 1983. While *Green v.*

Mansour details the limits of declaratory relief where no ongoing violation of federal law exists, the intensive involvement and interference by state actors in this case mandate federal intervention for the continued breach. Similarly, *Pennsylvania v. Finley* reinforces the idea that the right to appointed counsel extends beyond the criminal courtroom, especially in proceedings that place a heavy burden on an individual's rights — a stark similarity to the circumstances faced by the appellant.

4. Missouri Precedents and Federal Rights

Missouri case law notably recognizes the gravity of terminating parental rights, with the Supreme Court of Missouri in cases like *In re S.M.H.*, No. 07-18-00148-CV (Tex. App. Nov. 6, 2019) requiring clear and convincing evidence. When federal rights are compromised, as claimed here, an immediate and federal judicial purview becomes necessary, invoking 42 U.S.C. § 1983 as a defensive bulwark.

5. Conclusion

It is presented to this Honorable Court that the totality of actions culminating in the termination of the appellant's parental rights not merely infringe upon state law but elevate the dispute to a federal forum under the auspices of 42 U.S.C. § 1983. The appellant invokes this statute to correct the injustices born out of state action, rectify ongoing violations of federal law, and restore the appellant's rights as a parent that have been inappropriately severed.

In light of the above, the appellant respectfully requests this Court to grant an injunction to halt the enforcement of the termination order under the weight of 42 U.S.C. § 1983 and to interpret the facts in light of the Constitutional guarantees that frame the canvas of this nation's legal ethos.

In light of the above, the appellant respectfully requests this Court to grant an injunction to halt the enforcement of the termination order under the weight of 42 U.S.C. § 1983 and to interpret the facts in light of the Constitutional guarantees that frame the canvas of this nation's legal ethos.

F. Equitable Relief and Jurisdiction

In light of the new evidence and significant rehabilitation efforts of the appellant, there is a compelling case for the issuance of equitable relief to prevent ongoing violations of constitutional rights. Accordingly, the appellant invokes the court's jurisdiction to issue such relief, as is consistent with the principles established in *Ex parte Young* and supported by a thread of precedential authorities which afford

this honorable court the power to act justly in the face of potential miscarriages of justice.

1. The Necessity of Injunctive Relief

The appellant has demonstrated a substantive change in circumstances that directly affect the welfare of K.C.G. In accordance with the federal oversight afforded by 42 U.S.C. § 1983, and as illuminated through the lens of the *Ex parte Young* doctrine, there is critical jurisdiction for a federal remedy against ongoing state action perceived to violate the appellant's federal rights. The provision of injunctive relief becomes not merely a provision of equity but a necessity to prevent the ongoing deprivation of rights assured under the Fourteenth Amendment.

2. Applicable Federal and State Authorities

The authority under *Ex parte Young* enables the court to issue injunctions when constitutional rights are at stake, effectively halting state enforcement actions that are against federal law. Furthermore, consistent with Missouri's judicial observations — as seen in *State ex rel. J. D. S. v. Edwards*, 574 S.W.2d 405 (Mo. 1978) and *In re P.D.*, No. 11-1698 (W. Va. Jun. 25, 2012) — this call for suspension of the state's decision is rooted in the need to preserve the appellant's rights pending a closer examination of the adverse effects that such statutory actions may impose on him.

3. Supported by the Guidelines in *Ex parte Young*

Ex parte Young provides a clear basis for the federal court to enjoin state officials from enforcing state laws that are in violation of the federal Constitution. In this context, the termination of the appellant's parental rights without due regard for his recent improvements and compelling evidence not only challenges the doctrines established in cases like *Lassiter v. Department of Social Services* and *Santosky v. Kramer* but also suggests a departure from the rigors of procedural due process.

VI. CONCLUSION AND PRAYER FOR RELIEF

In conclusion, the appellant respectfully requests a reevaluation of the decision by this Honorable Court based on the principles of fairness, the presentation of new evidence, and relevant federal and state law considerations.

Prayers for relief include:

1. Reassessment of the decision terminating parental rights based on updated evidence and due process considerations.
2. The convening of an en banc court to review significant legal questions presented in this case.
3. Issuance of an injunction to halt the enforcement of the termination order pending a reevaluation of this case under the proper application of the law.
4. Any other relief that this Court deems just and proper

Based on the above-mentioned authorities, alongside compelling facts and circumstances apparent in the record, Petitioner respectfully requests that this Honorable Court grant the Motion to Reconsider. Petitioner seeks the opportunity to address the deficiencies noted herein and achieve an outcome that embodies the just, equitable principles that underpin our legal system. For the reasons stated, I respectfully request that the court grants this motion for reconsideration. I appeal to the Court's equitable conscience to deliberate on the arguments herein with the urgency and gravity they warrant. It is not merely the father's right that rests in the balance but the unfolding future of Kody Goodman, over whose welfare I remain steadfastly vigilant. Ergo, I beseech the Court to sanction this motion, to initiate an en banc review with alacrity, and should it be deemed essential, to endorse a transfer to a judicial forum equipped to extend this case the breadth of consideration it merits. We put our faith in the hope that the Court's wisdom will navigate us to a just and compassionate resolution. Failing to do so not only affect my parental rights but more importantly, impacts the well-being and welfare of my son, Kody Goodman. Embracing the intricacies of this case, the Court has the esteemed duty of delivering justice not only to an individual but potentially to the very structure of family law jurisprudence. The outcomes sought herein stand to thoroughly embody the noblest legal principles, offering sturdy protection for paternal rights and setting a precedent of considerable legal worth.

. Respectfully submitted,

Matthew Goodman

8681 SE 71ST

BAXTER SPRINGS KS 66713

phone 417-388-0890

FILED
Melisa Holcomb - Clerk
2/2/2022
JASPER COUNTY CIRCUIT CLERK
JOPLIN, MISSOURI

IN THE CIRCUIT COURT OF JASPER COUNTY, MISSOURI
JUVENILE DIVISION

In the Interest of:)
TRACE ROYAL ALTON)
KODY GOODMAN)
)
)

Case Number: 21AO-JU00002/3

TO: CLAY COLLINS
TRICIA ANN GOULD
BELINDA KADERLY
AMANDA COLLINS

NOTICE OF Motion to Modify Hearing

Motion to Modify Hearing in the above captioned case is set for **17-FEB-2022 02:30 PM**
Jasper Co Juv Detention Center Courtroom, Jasper County Juvenile Justice Center, 530 South Pearl,
Joplin, Missouri.

*case reset from 10:00 a.m.

Hon. COMMISSIONER ANGELA VORHEES

Date: 2ND DAY OF FEBRUARY, 2022

by /s/ ANITA O'NEAL-FAIR
Deputy Clerk

Cc: Melissa Holcomb
Jasper County Circuit Clerk

IN THE CIRCUIT COURT OF JASPER COUNTY, MISSOURI
JUVENILE DIVISION

In the Interest of:
TRACE ALTON
KODY GOODMAN

)
)
)
)
)

Case Number: 21AO-JU00002/3

TO: CLAY COLLINS
TRICIA ANN GOULD
BELINDA KADERLY
AMANDA COLLINS
KATHLEEN MILLER
DSS-CD – JENNIFER EMMONS
JACK SEITZ III
CASA

NOTICE OF Motion to Modify Hearing **RESET**

Motion to Modify Hearing in the above captioned case is set for **07-APR-2022 09:00 AM**,
Jasper County Juvenile Justice Center, 530 South Pearl, Joplin, Missouri.

Comm. ANGELA A VORHEES

Date: 31ST DAY OF MARCH, 2022

by /s/SUSAN NEAL D.C.
Deputy Clerk

Cc: Melissa Holcomb
Jasper County Circuit Clerk

Chemical Use History:

Client reported use of alcohol at age thirteen (13). He said when younger he drank too much and too fast. He indicated he could be irresponsible and physically aggressive when drinking. He indicated his family expressed concerns, and he was separated from his children for seven (7) months in 2015 while in treatment for alcohol abuse. Matthew reported he has lost friends, and embarrassed family, and friends when he was drinking. He reported history of drinking during work hours and on lunch/dinner breaks from work. He indicated he drank for the effect, to socialize and due to stress. He reported history of withdrawal that included irritability, nausea/vomiting, restlessness and was hospitalized for detox.

Client reported smoking cannabis around age thirteen (13). He indicated he never used on a regular basis. He denies use of cannabis age seventeen (17).

Mr. Goodman reported no other use of illicit or illegal substances.

Physical and Mental Health:

Matthew reported arthritis as a health concern. He is not prescribed any medications at this time. He reported no history of long-term depression, anxiety, suicidal ideation, or psychotic functioning.

Employment and Legal History:

Client has been self-employed since January 2021. He had previously worked for Leggett and Platt. He reported a legal history that includes two (2) DUIs the last occurring in 2015. He said he has had several traffic violations in the past.

Assessments and Recommendations:

Mr. Goodman completed SUD assessment including the SASSI 4, Self-Assessment, Supplemental SUD Intake and Gambling Screen. The SASSI indicated a high probability of a substance use disorder. Matthew reports no use of alcohol since 2015. Based on all assessment results and client report of no use since 2015, he does not meet medical necessity for substance use services at this time.

Ruth Weitzel, LAC

Ruth Weitzel, LAC
Addictions Services

This information has been disclosed to you from records whose confidentiality is protected by Federal Law. Federal Regulation (42 CFR, Part 2) prohibits you from making any further disclosure without the specific written consent of the person to whom it pertains, or as otherwise permitted by such regulations. A general authorization for the release of medical or other information is NOT sufficient for this purpose.

May 18, 2022

Kathleen Wolf-Miller
Attorney at law
1515-D West 10th Street
Joplin MO 64801

Phone: 417-317-5219
Email: kwmatl@attlaw@gmail.com

Re: Matthew Goodman

Date of Assessment: May 18, 2022.

Mr. Matthew Goodman was referred for assessment by his attorney. His youngest child was removed from his mother's care and placed in state custody in Missouri. Matthew is seeking custody.

Information based primarily on client report.

Personal and Family History:

Matthew Goodman is a thirty-six (36) year old Native American Male. He is divorced and has six (6) children. Matthew currently lives in Baxter Springs KS with his four (4) oldest children. He reports he has visitation with his youngest son and stepson in Missouri.

Matthew was raised by his parents. He is the oldest of three (3) children having a sister and a brother. He reported both parents drink to excess. Matthew said he has little contact with them because of their behaviors when drinking. He reported his sister has history of heroin abuse, but no current use and has a good job now.



Date: September 6, 2016
To: Whom It May Concern
From: Client Services
Subject: Matt Goodman

Dear To Whom It May Concern,

Mr. Goodman has been apart in our program for almost six months. Mr. Goodman is a team player and a role model client. He is at group sessions on time and always participates. He also shows up to one-on-one counseling on time. We have also made Mr. Goodman an R.A. (resident advisor), this is a liaison between clients and staff. R.A.'s oversees the house chores and assist with helping clients get to places on time.

Over all I have witnessed Mr. Goodman change in this program. I know the team is excited to continue working with Mr. Goodman. He has made some great strides as far as counseling, recovery, and classes is concerned.

Mr. Goodman is also participating in the GED program and parenting classes. He has shown initiative to complete both of these programs.

Should you need additional information, please contact Bryan Boman at 417-442-3074, email me at bboman@thepeoplesnetwork.biz, or visit our website at www.thepeoplesnetwork.biz.

Best regards,

Bryan Boman, MRSS

Client Services Coordinator



FILED

Melisa Holcomb - Clerk

10/26/2022

JASPER COUNTY CIRCUIT CLERK
JOPLIN, MISSOURI

IN THE CIRCUIT COURT OF JASPER COUNTY, MISSOURI
JUVENILE DIVISION

In The Interest of:

KODY CORINTHIANS GOODMAN
A MINOR CHILD

BENJAMIN LEE MILLER AND
CHRIS TINA ALTON MILLER,
PETITIONERS,

)
) Case No: 22AO-JU000288
)
)

VS.

DAWNDEE RENEE ALTON

AND

MATTHEW PRESTON GOODMAN

AND

MISSOURI DEPARTMENT OF SOCIAL SERVICES,
CHILDREN'S DIVISION,

AND

29TH CIRCUIT JUVENILE OFFICER,

RESPONDENTS

TO: SPELLMAN ROBERTSON
209 W 6TH STREET, STE 6
JOPLIN, MO 64801
913-486-9247

*Please make
call to appointment*

NOTICE OF COURT APPOINTMENT

You have been appointed by the Court to serve as COUNSEL FOR,
MATTHEW PRESTON GOODMAN, LEGAL FATHER, of the above juvenile(s).

Dated: OCTOBER 26, 2022

MELISSA HOLCOMB, CIRCUIT CLERK BY
ANITA O'NEAL, DEPUTY CLERK
By: _____

c.c. MATTHEW PRESTON GOODMAN

IN THE CIRCUIT COURT
OF JASPER COUNTY, MISSOURI
JUVENILE DIVISION

In re the matter of KCG

)
)
)

Case Number 21AO—JU00003

ENTRY OF APPEARANCE

COMES NOW, Kathleen Wolf Miller, and respectfully makes her entry of appearance as Attorney for Matthew Goodman, the Father herein.

/s/ Kathleen Wolf Miller
Kathleen Wolf Miller Bar No 56158
Attorney at Law LLC
622 Main Street
Joplin, MO 64801
(417) 782-7600
(417) 781-1552 (fax)
KWM@wolfmillerlaw.com

CERTIFICATE OF SERVICE

I hereby certify that a copy pf the forgoing was served upon all parties, by submitting the same to the Courts electronic filing system and hand delivery.

/s/ Kathleen Wolf Miller
Kathleen Wolf Miller

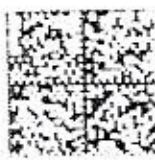
Letter received wrong address lived at 8681 SE 7
Baxter Springs Ks.



MELISSA HOLCOMB
CLERK OF CIRCUIT COURT
601 SOUTH PEARL, ROOM 300
JOPLIN, MISSOURI 64801-2589

MATTHEW GOODMAN
8681 SE 71ST
CARTHAGE, MO 64836

Post at
First Class Mail
ComplisPost



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IN THE CIRCUIT COURT OF JASPER COUNTY, MISSOURI
JUVENILE DIVISION

In The Interest of:

KODY GOODMAN

)
) Case No: 21AO-JU00003
)
)

TO: RON SPARLIN
PO BOX 1626
JOPLIN, MO 64802

NOTICE OF COURT APPOINTMENT

You have been appointed by the Court to serve as COUNSEL FOR, MATTHEW
GOODMAN, NATURAL FATHER of the above juvenile(s).

Dated: February 23, 2021

MELISSA HOLCOMB, CIRCUIT CLERK
/s/ ANITA O'NEAL-FAIR, D.C.
By: _____

c.c. MATTHEW GOODMAN



IN THE 29th JUDICIAL CIRCUIT COURT, Jasper, MISSOURI

Judge or Division: Angela A. Vorhees	Case Number: 19AP-FC00400
Petitioner: MATTHEW P. GOODMAN	Petitioner's Address/Telephone: 8681 SE 71ST BAXTER SPRINGS, KS 66713
Respondent: DAWNDEE R. ALTON	Respondent's Address/Telephone: 1941 KIMBERLING LANE CARTHAGE, MO 64836

FILE
Melissa Holcomb, Circuit Clerk
2/23/2021
Jasper County Circuit Clerk
Carthage, MO

(Date File Stamp)

Order to Proceed As a Poor Person

- ☐ The Court, having considered the Motion and Affidavit in Support of Request to Proceed as a Poor Person, finds that _____ is without sufficient funds or assets with which to pay the advance deposit for costs in this action and, therefore, is granted leave to proceed as a poor person and the required advanced deposit for costs is waived.
- ☒ The Court, having considered the Motion and Affidavit in Support of Request to Proceed as a Poor Person, finds that Matthew Goodman has sufficient funds or assets with which to pay the advance deposit for costs in this action, and therefore, the Motion is denied.

2/23/2021

Date

Commissioner/Judge

NOTICE OF ENTRY
(SUPREME COURT RULE 74.03)

In The 29th Judicial Circuit Court, Jasper County, Missouri
302 S. MAIN, CARTHAGE, MISSOURI 64836

MATTHEW P GOODMAN V DAWNDEE R ALTON

CASE NO : 19AP-FC00400-01

To: MATTHEW P GOODMAN
8681 SE 71ST STREET
BAXTER SPRINGS KS 66713

YOU ARE HEREBY NOTIFIED that the court duly entered the following:

<u>Filing Date</u>	<u>Description</u>
23-Feb-2021	Motion for Family Access Sched Scheduled For: 19-Mar-2021 1:00 PM; ANGELAAUSTIN VORHEES; Division I - Joplin; Jasper County - Joplin FAMILY ACCESS HEARING Event Location: 601 S. Pearl, Joplin, Mo

CC: MATTHEW P GOODMAN

ECC:

Date Printed : 23-Feb-2021


Clerk of Court

▲ COVID-19 alerts from Missouri courts:

▲ Please read court-specific notices. To determine the status of a particular proceeding, please check the case's docket entries in Case.net, ask your attorney or contact the local clerk's office.

Litigant Awareness Program Completion

1. Fill in the blanks below.



IN THE CIRCUIT COURT OF JASPER COUNTY, MISSOURI

Petitioner Name:

Jasper County Juvenile div.
21AO-JU00003

Case Number (To be filled in by court clerk)

Respondent Name:

Matthew Goodman

Certificate of Completion of Statewide Litigant Awareness Program

I affirm I have completed the online statewide education program.

Your Signature Matthew Goodman

Your Printed Name: Matthew Goodman

Date: 09/01/2020

Certificate Number 090120201123

2. Print a copy to give to the court. You may want to print an additional copy to keep with your records.

Print this page

Reset

3. You have completed the required Litigant Awareness Program. Return to the Representing Yourself Home page to find the forms approved for your family law matter.

IN THE CIRCUIT COURT OF JASPER COUNTY, MISSOURI
AT CARTHAGE

Jasper County Circuit Court JAV:JED:U

PETITIONER

V

CASE # 21AC-JW 0000213

Matthew P. Goodman

RESPONDENT



Motion to reconsider

(Title of Motion)

I would like to ask the court to take into consideration the new evidence (Judgment of Declaration of Paternity And custody, visitation and support) presented and also a time for me to file custody paperwork regarding to sole custody. Also consider separating the allegations of abuse now that an investigation has been completed and Dawdee Alton is abused named. Also please be aware weather conditions and location account for much of the time if time requirements of this motion are not met. Further more I believe the best interest of Koby Alton would be best served by granting this motion § 36.6 for also meaningful contact for me and my son has been disrupted § 52.375

DATE 2-23-21

SIGN

A handwritten signature in black ink, appearing to be "Matthew P. Goodman", written over a horizontal line.

Exhibit B

~~Protective Order~~

Mc

IN THE CIRCUIT COURT OF JASPER COUNTY, MISSOURI
JUVENILE DIVISION

IN THE INTEREST OF:

Alton-Goodman

CASE NO. : 21AO-JU00002/3

NOTICE TO APPEAR
Adjudication Hearing

- ☒ You are scheduled to appear at the Jasper County Juvenile Center at 530 S. Pearl, Joplin
- ☐ The next hearing will NOT be in-person and will be held by report review unless otherwise notified prior to the Court date. To remain up to date, maintain contact with your attorney and notify the Court of any change of address.

Tuesday, February 23, 2021 at 11:30:00 AM

YOU ARE ADVISED THAT THIS IS YOUR NOTICE OF YOUR NEXT COURT DATE AND TIME.
CHILDREN'S DIVISION IS TO ADVISE ANY ABSENT PARTIES OF THIS HEARING DATE.

Court Appointed Counsel

Amanda Collins
216 E. 12th Street
PO Box 1376
Joplin, MO 64802
417-553-4321

Tricia Gould
403 West 5th St.
Joplin, Mo 64801
417-624-5002

Jamey Garrity
209 West 6th
Joplin, MO 64801
417-782-0707

Brad Barton
122 S Main St
Webb City, MO 64870
417-624-1155

Please contact your attorney to make an appointment

Parents Attorney Appointment list: Gould 3, 4, 5 / Garrity 6, 7 / Collins 8, 9 / Barton 0, 1, 2

*If you are a parent in this case and do not have an attorney to represent you, you may request an application for an attorney at any time during the case.

**If you are a FOSTER PARENT to the above named juvenile, you have the right to be heard at court with respect to the child's care, custody, and welfare please notify the Juvenile Officer prior to the hearing.

Revised: September 2020

**IN THE CIRCUIT COURT OF JASPER COUNTY, MISSOURI
JUVENILE DIVISION**

IN THE INTEREST OF:

Alton-Goodman

CASE NO. : 21AO-JU00002/3

NOTICE TO APPEAR

Adjudication Hearing

- ☒ You are scheduled to appear at the Jasper County Juvenile Center at 530 S. Pearl, Joplin
- ☐ The next hearing will NOT be in-person and will be held by report review unless otherwise notified prior to the Court date. To remain up to date, maintain contact with your attorney and notify the Court of any change of address.

Tuesday, February 09, 2021 at 11:30:00 AM

YOU ARE ADVISED THAT THIS IS YOUR NOTICE OF YOUR NEXT COURT DATE AND TIME.
CHILDREN'S DIVISION IS TO ADVISE ANY ABSENT PARTIES OF THIS HEARING DATE.

Court Appointed Counsel

Amanda Collins
216 E. 12th Street
PO Box 1376
Joplin, MO 64802
417-553-4321

Tricia Gould
405 West 5th St.
Joplin, Mo 64801
417-624-5002

Jamey Garrity
209 West 6th
Joplin, MO 64801
417-782-0707

Brad Barton
122 S Main St
Webb City, MO 64870
417-624-1155

Please contact your attorney to make an appointment

Parents Attorney Appointment list: Gould 3, 4,5 / Garrity 6,7 / Collins 8,9 / Barton 0,1,2

*If you are a parent in this case and do not have an attorney to represent you, you may request an application for an attorney at any time during the case.

**If you are a FOSTER PARENT to the above named juvenile, you have the right to be heard at court with respect to the child's care, custody, and welfare please notify the Juvenile Officer prior to the hearing.

Revised: September 2020



PENNICK | BARTON

Keith J. Pennick*

Bradley R. Barton

*Licensed in Missouri &
Kansas

A Limited Liability Company

Attorneys At Law
122 S. Main, Suite B
Webb City, Missouri 64870

Telephone 417-624-1155

Facsimile 417-624-1170

September 5, 2019

Matthew Goodman
1018 W. Chestnut Street
Carthage, MO 64836

RE: Matthew Goodman vs. Dawndee Alton
Case No. 19AP-FC00400

Dear Matthew:

Enclosed please find the Judgment and Declaration of Paternity and Order of Custody, Visitation, and Support. The only remaining issue is to add your name to the birth certificate and change Kody's last name to Goodman. I will submit the forms to the Bureau of Vital Statistics to get that accomplished.

In the meantime, if you have any questions, please don't hesitate to contact my office.

Very truly yours,

PENNICK | BARTON, LLC

Keith J. Pennick

KJP/cah
Enclosures

the merits of my case and i am driven by the sincere desire to ensure a just and fair outcome. It is my firm conviction that the matters at heart in this appeal not only affect my parental rights but more importantly, implicate the rights and future of my son, Kody.

I respectfully request that the Court give consideration to the enclosed motion and the critical issues it raises. My dedication to adhering to the court's procedural rules reflects my esteem for this Court's process and earnest hope for a decision that best serves the interests of my son.

Thank you for your attention to this matter. I am at the Court's disposal for any inquiries or further information required. I eagerly await your guidance and decisions on the steps ahead.

Sincerely,

Matthew P Goodman

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Matthew Goodman

8681 SE 71ST ST

Baxter Springs KS. 66713

malcolmgoodmen@gmail.com

417-388-0890

Date: 2024-04-19

Craig A. Street, Clerk Missouri Court of Appeals 300 S. Hammons Pkwy Ste 300
Springfield MO.

Dear Clerk,

I am writing as the appellant in the referenced matter, to submit an enclosed motion seeking reconsideration, request for en banc review, transfer, and petition for injunctive relief pursuant to 42 U.S.C. § 1983. This motion is critical for addressing ongoing violations of federal rights and comes as part of my appeal concerning the termination of my parental rights over my child, Kody Goodman.

This submission is meticulously prepared in alignment with Missouri Court Rules, particularly Rule 29.15 and Rule 24.035, governing post-disposition relief in cases involving the termination of parental rights (TPR). I hereby request the Court to confirm that the enclosed motion adheres to these essential rules and meets the procedural and legal standards set forth for appeals within this jurisdiction.

OK i, with the deepest respect for the Court's longstanding tradition of justice and fairness, earnestly seek to ensure that all facets of my appeal, including this motion, are processed in strict compliance with the Court's requirements. I am committed to fulfilling any procedural prerequisites and abides by the legal framework established by this honorable Court. Should there be any aspects of the submission that require amendments to align with the Court's protocols or enhance clarity, I am fully prepared to undertake necessary revisions based on the Court's guidance.

The significance of this appeal and the accompanying motion cannot be overstated, as they directly concern the well-being and prospects of Kody Goodman. I deeply believe in

NOTICE OF ENTRY
(SUPREME COURT RULE 74.03)

In The 29th Judicial Circuit Court, Jasper County, Missouri
302 S. MAIN, CARTHAGE, MISSOURI 64836

MATTHEW P GOODMAN V DAWNDEE R ALTON

CASE NO : 19AP-FC00400-02

To: MATTHEW PRESTON GOODMAN
8681 SE. 71ST STREET
BAXTER SPRINGS KS 66713

YOU ARE HEREBY NOTIFIED that the court duly entered the following:

Filing Date Description

24-May-2022

Order

Matter ordered stayed pending continuing juvenile court jurisdiction.

Hearing/Trial Cancelled

Scheduled For: 08-Jul-2022 2:15 PM; ANGELA AUSTIN VORHEES; Family Courtroom - Carthage; Jasper
County - Carthage

Set for 1 hour

Event Location: 302 S. Main, Carthage, Mo

Melissa Holcomb, Circuit Clerk

By: /s/ Tiana Miller D.C.

Clerk of Court

CC: DAWNDEE RENEE ALTON
MATTHEW PRESTON GOODMAN

ECC:

Date Printed : 24-May-2022

Missouri Court of Appeals
Southern District

No. SD38180

IN THE INTEREST OF K.C.G.	)	
	)	
JASPER COUNTY JUVENILE OFFICE,	)	
B.L.M., AND C.T.A.M.,	)	
	)	
Respondents,	)	
	)	
vs.	)	
	)	
M.P.G.,	)	
	)	
Appellant.	)	

FILED
APR 10 2024
CRAIG A. STREET, CLERK
MISSOURI COURT OF APPEALS
SOUTHERN DISTRICT

ORDER

Now on this day, the Court takes up appellant's correspondence dated April 8, 2024, which the Court construes as a motion for an extension of time to file a motion for rehearing and/or application for transfer. Having fully considered the same, the Court grants leave to appellant, until **April 30, 2024**, to file a motion for rehearing and/or application for transfer. Any other relief requested in the motion is hereby denied.

Also, on this day, the Court takes up appellant's second letter dated April 8, 2024. The Court denies any relief requested therein.

cc: Attorneys of Record – via the electronic filing system
Matthew Goodman – via email and U.S. mail

IN THE CIRCUIT COURT OF JASPER COUNTY, MISSOURI
JUVENILE DIVISION

In the Interest of:
TRACE ALTON
KODY GOODMAN

)
)
)
)
)

Case Number: 21AO-JU00002/3

TO: CLAY COLLINS
TRICIA ANN GOULD
BELINDA KADERLY
AMANDA COLLINS
KATHLEEN MILLER
DSS-CD JENNIFER EMMONS
CASA
JACK SEITZ III

NOTICE OF Motion to Modify Hearing **RESET**

Motion to Modify Hearing in the above captioned case is set for **31-MAR-2022 10:30 AM**,
Jasper County Juvenile Justice Center, 530 South Pearl, Joplin, Missouri.

***RESET FROM 10-MAR-2022**

Comm. ANGELA A VORHEES

Date: 8TH DAY OF MARCH, 2022

by _____
Deputy Clerk

Cc: Melissa Holcomb
Jasper County Circuit Clerk